Bengaluru City vs 5. The Prosecution Has Also Produced The ... on 17 April, 2023

1 C.C.No.13586/2020

KABC030514332020

VEEDAMOORTHY BS SADANANDABHAT BOLLAJE

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Date: 2023.04.17 15:34:38 +0530

Presented on : 21-10-2020
Registered on : 21-10-2020
Decided on : 17-04-2023
Duration : 2 years, 5 months, 27 days

IN THE COURT OF THE II ADDITIONAL CHIEF METROPOLITAN MAGISTRATE, BENGALURU CITY

Dated this 17th day of April 2023

PRESENT : SRI.VEDAMOORTHY B.S. B.A.(L), LL.B.
II Additional Chief Metropolitan Magistrate, Bengaluru City

JUDGMENT UNDER SECTION 355 OF Cr.P.C.

1.

Sl. No. of the case C.C.No.13586/2020 Date of commission of the

2. 04.11.2019 offence (As per F.I.R.) Konanakunte Police Station,

3. Name of the complainant Bengaluru City Mujahid, S/o Late Amanulla, Aged about 29 years, R/at No.24,

4. Name of the accused Near Banashankari Temple, Hari Colony, Sarabande Palya, Bengaluru City.

Section 14(1) of The Child The offences complained

5. Labour (Prohibition and of Regulation) Act, 1986

6. Plea of the accused Pleaded not guilty

7. Final order The accused is acquitted

8. Date of order 17.04.2023 The Police Sub-Inspector of Konanakunte Police Station, Bengaluru City has filed Police Report against the above named accused alleging that he has committed the offence punishable under Section 14(1) of The Child Labour (Prohibition and Regulation) Act, 1986.

2. The Prosecution case in brief is that on 04.11.2019 at 11.30 a.m., the accused being the owner of K.G.N. Puncher Shop situated at No.26/123, 1st Main Road, P.Yallappa Garden, Near Yallamma Temple, Chunchaghatta, Bengaluru within the territorial jurisdiction of Konanakunte Police Station, Bengaluru City was employed CW2 Mohammed Asif who is a child which is in contravention of Section 3 of The Child Labour (Prohibition and Regulation) Act, 1986. Thereby, the accused has committed the offence punishable under Section 14(1) of The Child Labour (Prohibition and Regulation) Act, 1986.

3. Based on the First Information of CW1, the crime was registered in Crime No.298/2019 at Konanakunte Police Station. On completion of the investigation, the Sub- Inspector of Police of Konanakunte Police Station, Bengaluru City filed Police Report against the accused alleging that he has committed the offence punishable under Section 14(1) of The Child Labour (Prohibition and Regulation) Act, 1986. After taking cognizance of the said offence, the process was issued to the accused. He has appeared before this Court and enlarged on bail. The copies of the Police Report and other prosecution papers are furnished to the accused under Section 207 of Cr.P.C. After hearing, since there were grounds for presuming that the accused has committed offence triable by this Court, charges for the offence punishable under Section 14(1) of The Child Labour (Prohibition and Regulation) Act, 1986 has been framed and read over to him in Kannada language. He has pleaded not guilty and claims to be tried.

4. To prove the charges framed against the accused, out of 10 witnesses cited in the Police Report by the Investigation Officer, the prosecution has produced the oral evidences of seven witnesses before this Court as PW1 to PW7. Among them, PW1 Smt.Shashikala Giddavar is the First Informant of this case, PW2 Vinod and PW3 Yallappa are the eyewitnesses of the incident, PW4 Narsimha Babu is the Police Official who arrested the accused and produced before the Investigation Officer, PW5 Ravi is the Spot Mahazar Witness, PW6 M.Ramachandrappa is the Investigation Officer and PW7 Mohammed Asif is the child who was working with the accused.

5. The prosecution has also produced the documentary evidences Ex.P1 to Ex.P10. Among them, Ex.P1 is the First Information, Ex.P2 is Inspection Note, Ex.P3 is the Annexure- I, Ex.P4 is the School Admission Certificate, Ex.P5 is the Office Order, Ex.P6 is the Childline Complaint, Ex.P7 is the Spot Mahazar, Ex.P8 is the Witness Statement of PW3, Ex.P9 is the Report and Ex.P10 First Information Report.

6. After completion of the prosecution evidences, for the purpose of enabling the accused personally to explain any circumstances appearing in the evidences of the prosecution against him, examined

the accused under Section 313 of Cr.P.C. He has denied the entire prosecution evidences which are incriminating against him as false. He has submitted that he has no defense evidence.

7. Heard the arguments of learned Senior Assistant Public Prosecutor and the learned counsel for the accused. The arguments of the learned Senior Assistant Public Prosecutor are that from the oral evidences of PW1 to PW7 and the documentary evidences Ex.P1 to Ex.P10, the prosecution has proved the guilt of the accused for the offence charges against him.

8. The arguments of the learned Counsel for the accused are that though, PW1 and PW2 have deposed in their examination-in-chief that PW7 was working in the shop of the accused and on enquiry, he has stated that he was working in the said shop since one month, PW7 has deposed in his examination-in-chief that he was not working in the shop of the accused. Though, PW7 has been considered as hostile witness and cross-examined at the request of the prosecution, nothing has been elicited in his cross- examination supporting the case of the prosecution. He is a material witness who is said to have been rescued from the shop of the accused. Unless the prosecution has proved that he is deposing false evidence before the Court to save the accused from the alleged offence, his evidence deposed before the Court has to be believed and without any corroboration to the oral evidences of PW1 and PW2, it cannot be held that the prosecution has proved the guilt of the accused for the charge framed against him. PW3 has also deposed evidences before the Court not supporting the case of the prosecution. PW1 has deposed in her cross-examination that she signed Ex.P7 at Police Station and at that time, her colleagues Manjunatha and Sujatha were present. PW5 has deposed in his examination-in-chief that Labour Inspector inspected the Puncher Shop of the accused, wrote Ex.P7, obtained his signature, took a child by name Asif with them and at that time, Police were present with them. These evidences of PW5 are contrary to the case of the prosecution and the evidences of PW1 and PW6. Therefore, the prosecution has not proved the guilt of the accused for the charge framed against him.

9. Perused the materials available on record.

10. The points for determination are;

1. Whether prosecution has proved the offence charged against the accused for the offence punishable under Section 14(1) of The Child Labour Prohibition and Regulation Act, 1986 beyond reasonable doubt?

2. What order or sentence?

11. My answers to the above points are as follows:

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Point No.1 :    In the Negative,
Point No.2 :    As per final order for the following;

                REASONS
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12. POINT No.1 :- PW1 is the witness who is the First Informant of this case has deposed in her examination-in- chief that on 04.11.2019 at 11.30 p.m., she with the help of Konanakunte Police went to KGN Puncher Shop situated at Puttanahalli along with NGO Manjunatha and Sujatha; the accused who was the owner of the said shop was present; PW7 who is a child aged about 11 years was working in the said shop as helper; on enquiry with him, he has stated that since one month, he is working there; the accused has not given salary to him; thereafter, she prepared Annexure-I as per Ex.P3; obtained the signatures of the accused and PW7 on it; on verifying the School documents, she came to know that the date of birth of PW7 was 03.09.2008; she prepared Inspection Note as per Ex.P2; admitted to Government Urdu Middle School of Sarabandepalya; obtained the Acknowledgment as per Ex.P4 and gave Complaint to the Police as per Ex.P1.

13. The Prosecution has not produced the oral evidences of Manjunatha and Suchetha before the Court. PW2 has deposed in her examination-in-chief that on 04.11.2019, he visited along with PW1 to KGN Puncher Shop situated at Kothanuru Main Road; the accused who was the owner of the said shop was present; PW7 who aged about 11 years was working as helper in the said shop; on enquiry, he has stated that since one month, he was working and the salary was not paid to him; Inspection Note was prepared and he was admitted to Government Urdu Middle School of Sarabandepalya.

14. As per the case of the Prosecution, PW3 is the owner of the shop premises in which, the accused was running KGN Puncher Shop. PW3 has deposed in his examination-in-chief that he know the accused; his puncher shop is in his building; he has no information about the case and he has not given any statement to the Police. He has been considered as hostile witness and cross-examined at the request of the Prosecution. Nothing has been elicited in his cross- examination supporting the case of the Prosecution. The denied portion of his Witness Statement recorded by the Investigation Officer is marked as Ex.P8.

15. As per the case of the Prosecution, PW4 is the Witness who arrested the accused and produced him before the Investigation Office along with the Report Ex.P9. He has deposed the said facts in his examination-in-chief supporting the case of the Prosecution.

16. As per the case of the Prosecution, PW5 is the Spot Mahazar Witness. He has deposed in examination-in-chief that a year back one day, he signed Ex.P7 at a puncher shop situated at Konanakunte; Labour Inspector came; inspected; wrote and obtained his signature on it; a small child was there; the accused was the owner of the puncher shop; Labour Inspector took a child by name Asif with them and along with Labour Inspector, there were two Police Officials. He has deposed in his cross-examination conducted by the Prosecution that on 04.11.2019, the Spot Mahazar was conducted between 5.45 to 6.30 p.m. in front of KGN Puncher Shop at 1st Main Road, P.Yellappa Garden of Konanakunte and obtained his signature.

17. As per the case of the Prosecution, PW6 is the Investigation Officer of this case. He has deposed in his examination-in-chief that on 04.11.2019 at 5.00 p.m., he received the First Information given by PW1 as per Ex.P1; registered the crime and forwarded the First Information Report to the Court as per Ex.P10; he visited the place of incident and conducted Mahazar as per Ex.P7 between 5.30 to 6.30 p.m. at the place of incident in the presence of CW7 and CW8; recorded the Witness

Statements of CW3 to CW6; on 13.11.2019, PW4 produced the accused at 8.45 p.m. along with Ex.P9; he was released on bail; he recorded the Witness Statement of PW4 and on completion of the investigation, he filed the charge-sheet.

18. As per the case of the Prosecution, PW7 is the child who rescued from the puncher Shop of the accused. He has deposed in his examination-in-chief that he does not know the accused; he was not working with the accused; when he was playing on the road, the Officers admitted him to Urdu School at Sarabandepalya and at that time his age was 11 years. He has been considered as hostile witness and cross- examined at the request of the Prosecution. Nothing has been elicited in his cross-examination supporting the case of the Prosecution.

19. PW1, PW2 and PW4 to PW6 are cross-examined on behalf of the accused. There is no cross-examination of PW3 and PW7 on behalf of the accused. Therefore, the oral evidences of PW3 and PW7 are are remained undisputed by the accused.

20. Though, the prosecution has not produced any documentary evidences to prove that the accused was running KGN Puncher Shop at Chunchaghatta, PW3 has deposed in his examination-in-chief itself that the accused is running puncher shop in his building. This evidence of PW3 remained undisputed by the accused. During cross- examination of PW1 and PW2, the accused has not denied that he was running KGN Puncher Shop at Chuchaghatta. Therefore, the Prosecution has proved the fact that the accused was running KGN Puncher Shop at Chuchaghatta.

21. The Prosecution has also not produced any documentary evidences to prove that as on the date of the alleged incident, PW7 was a child. PW1 has deposed in her examination-in-chief itself that on verifying the School documents of PW7, it came to know that his date of birth was 03.09.2008. But, the Investigation Officer during the investigation has not collected the said document. Ex.P4 is the document which was came into existence at the time of admission of PW7 to Government Urdu Middle School of Sarabandepalya and it cannot be considered as an evidence to prove that the date of birth of PW7 was 03.09.2008. However, PW7 has deposed in his examination-in-chief that when he was admitted to Urdu School, his age was 11 years. With regard to this evidence of PW7, the accused has not cross-examined the said witness. Therefore, the oral evidence of PW7 about his age as on the date of the alleged incident that was 11 years is remained undisputed by the accused. During cross-examination of PW1 and PW2 also, their oral evidences that the accused was 11 years old child is remained undisputed by the accused. Therefore, the Prosecution has also proved that PW7 was a child as on the date of the alleged incident.

22. PW1 and PW2 have deposed in their examination-in- chief that PW7 was working in the puncher shop of the accused as helper. During cross-examination of PW1 and PW2, this fact is denied by the accused. Though, nothing has been elicited in their cross-examination to disbelieve their above evidences in their examination-in-chief, it appears that PW7 has deposed in his examination-in-chief that he do not know the accused; he was not working with him and when he was playing on the road, the Officers took him to Urdu School, Sarabandepalya and admitted to the said School. As rightly argued by the learned Counsel for the accused that though, PW7 has been considered as hostile witness and cross-examined at the request of the prosecution, nothing has

been elicited in his cross-examination supporting the case of the prosecution. He is a material witness who is said to have been rescued from the shop of the accused. Unless the prosecution has proved that he is deposing false evidence before the Court to save the accused from the alleged offence, his evidence deposed before the Court has to be believed.

23. Moreover, as per the case of the Prosecution, PW3 is also a witness who was present at the time of the alleged incident. But, he has not deposed about the alleged incident supporting the case of the Prosecution. Therefore, only based on the oral evidences of PW1 and PW2, it cannot say that when, PW1 and PW2 went to the shop of the accused, he employed PW7 to do helping work in his puncher shop. It is not the evidences of PW1, PW2 and PW7 that the signatures of PW7 was obtained to Ex.P2 and Ex.P3 stating that he was working under the employment of the accused in his puncher shop. For the above reasons, I am holding that the prosecution has not proved the guilt of the accused for the offence punishable under Section 14(1) of The Child Labour (Prohibition and Regulation) Act, 1986 beyond all reasonable doubt. Hence, I answer Point No.1 in the Negative.

24. POINT No.2 :- For the reasons stated in Point No.1, the prosecution has not proved the guilt of the accused for the offence punishable under Section 14(1) of The Child Labour (Prohibition and Regulation) Act, 1986 beyond all reasonable doubt. Therefore, the accused is not found guilty for the aforesaid offence charged against him. In the result, I proceed to pass the following;

ORDERS Under Section 248(1) of Cr.P.C, the accused is hereby acquitted for the offence punishable under Section 14(1) of The Child Labour (Prohibition and Regulation) Act, 1986.

His bail bond executed and the cash surety furnished will be in force till appeal period and thereafter, it shall be canceled.

Since, MO1 is worthless, it is ordered to destroy after appeal.

(Typed by the Stenographer in the Court Computer on my direct dictation, printout taken, corrected and then pronounced by me in the open court on 15.04.2023) (VEDAMOORTHY B.S.) II Addl. Chief Metropolitan Magistrate, Bengaluru City.

ANNEXURE Witnesses Examined on behalf of Prosecution :-

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PW1          :   Shashikala Giddavar,
PW2          :   Vinod,
PW3          :   Yallappa,
PW4          :   Narsimha Babu,
PW5          :   Ravi,
PW6          :   M.Ramachandra,
PW7          :   Mohammed Asif.
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Documents marked on behalf of Prosecution :-

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Ex.P1        :   First Information,
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Ex.P1(a) & (b)    :   Signatures,
Ex.P2             :   Inspection Note,
Ex.P2(a)          :   Signature,
Ex.P3             :   Annexure-I,
Ex.P3(a)          :   Signature,
Ex.P4             :   School Admission Certificate,
Ex.P5             :   Office Order,
Ex.P5(a)          :   Signature,
Ex.P6             :   Childline Complaint,
Ex.P6(a)          :   Signature,
Ex.P7             :   Spot Mahazar,
Ex.P7(a) to (c)   :   Signatures,
Ex.P8             :   Witness Statement,
Ex.P9             :   Report,



Ex.P9(a) & (b)   :     Signatures,
Ex.P10           :     First Information Report.
Ex.P10(a)        :     Signature.
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Material objects marked on behalf of Prosecution :-

NIL Witnesses Examined on behalf of the accused :-

NIL Documents marked on behalf of the accused :-

NIL (VEDAMOORTHY B.S.) II Addl. Chief Metropolitan Magistrate, Bengaluru City.

15.04.2023 Judgment pronounced in open Court vide separate order.

ORDERS Under Section 248(1) of Cr.P.C, the accused is hereby acquitted for the offence punishable under Section 14(1) of The Child Labour (Prohibition and Regulation) Act, 1986.

His bail bond executed and the cash surety furnished will be in force till appeal period and thereafter, it shall be canceled.

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(VEDAMOORTHY B.S.) II Addl. Chief Metropolitan Magistrate, Bengaluru City.